



DRAFT — FOR SARAH'S REVIEW

Employment Agreement

OptiMind Educational Strategies — prepared by Ruby Groves, Gemini Lane

Status · Draft Last updated · Aug 16, 2026

Not legal advice. This is a planning draft, not a finished contract. Every clause below — especially Section 6 (Non-Compete) — needs review by a licensed Maryland employment attorney before it's used or signed. Maryland restricts non-compete clauses for employees below certain wage thresholds and has continued narrowing where they're enforceable at all; that section may need to be rewritten or dropped entirely depending on compensation.

This Employment Agreement ("Agreement") is entered into between OptiMind Educational Strategies ("Employer") and **[Employee Name]** ("Employee"), effective as of **[TBD — start date]**.

1. Position & Duties

Employee is engaged as Executive Function (EF) Specialist, reporting to Sarah Ritter, Founder. Employee's duties are as described in the Role Definition & Responsibilities document, incorporated here by reference and updated from time to time by Employer.

2. At-Will Employment

Employment under this Agreement is at-will. Either party may terminate the employment relationship at any time, with or without cause or advance notice, subject to Section 9 below.

3. Compensation & Schedule

Employee will be compensated at **[TBD — hourly/salary, amount]**, paid on a **[TBD — pay frequency]** basis, for an expected schedule of **[TBD — days/hours]**.

4. Confidentiality

Employee agrees to the terms of OptiMind's Confidentiality & Data-Handling Agreement, executed separately and incorporated here by reference. That agreement governs Employee's handling of client records, including neuropsych reports, IEPs/504s, and other sensitive educational and health information.

5. Non-Solicitation

For a period of [TBD — e.g., 12 months] following termination of employment, Employee agrees not to directly solicit any OptiMind client, client family, or referral source with whom Employee had material contact during employment, for the purpose of providing competing services.

6. Non-Compete requires attorney review

[TBD — draft placeholder only] : For a period of [TBD] following termination, within [TBD — geographic scope] , Employee agrees not to provide competing executive-function coaching or educational advocacy services. **Do not rely on this clause as written** — confirm with an attorney whether it's enforceable at all given Employee's compensation, and whether it's worth including versus relying on Section 5 alone.

7. Intellectual Property

Any curriculum materials, templates, worksheets, or client-facing content Employee creates in the course of employment are the property of OptiMind Educational Strategies.

8. Return of Property

Upon termination, Employee will return all client files, notes, devices, and materials, and will have no continuing access to OptiMind systems.

9. Termination

Either party may terminate this Agreement with [TBD — notice period, if any] notice. OptiMind may terminate immediately for cause.

10. Governing Law & Disputes

This Agreement is governed by the laws of the State of Maryland. [TBD — confirm whether an arbitration clause is wanted, or disputes proceed through the courts] .

11. Entire Agreement

This Agreement, together with the Confidentiality & Data-Handling Agreement, constitutes the entire agreement between the parties regarding employment terms.

Employee signature & date

Sarah Ritter, Founder & date

Open Questions for Sarah

1. What's the compensation amount and pay frequency?
2. How long should the non-solicitation period run?

3. Should a non-compete clause be included at all — and has it been reviewed by a Maryland employment attorney?
4. What notice period, if any, applies to termination?
5. Should disputes go through arbitration, or the courts?